

to prepare an opposition to this Motion.

3. Defendant's Counsel is ordered to appear via Zoom on June 24, 2026 and is ordered to show cause why counsel did not withdraw this Motion upon withdrawal of the subpoenas by Plaintiff and why the Court should not require Defendant to pay for Plaintiff's fees and costs for having to prepare a briefing and opposition to an unnecessary motion.

20. 9:01 AM CASE NUMBER: C25-01525

CASE NAME: MARAT VALIULLIN VS. DAVID STALLWORTH

***HEARING ON MOTION FOR DISCOVERY QUASH DEPOSITION SUBPOENAS FOR PRODUCTION OF BUSINESS RECORDS ISSUED TO THIRD PARTY PROVIDERS, OR IN THE ALTERNATIVE, FOR LIMITING THE SCOPE OF THE SUBPOENAS**

FILED BY: VALIULLIN, MARAT

TENTATIVE RULING:

Summary

Plaintiff Nataliya Muravskaya's Motion to Quash Deposition Subpoenas or, in the alternative, to limit their scope, is **granted** in part as set forth herein.

Background

This case arises out of a motor vehicle accident that occurred on March 31, 2024. Plaintiffs allege that Defendant David Lee Stallworth operated his vehicle negligently, knowing that he suffered from epileptic seizures, one of which caused the incident. Nataliya claims to have suffered injuries from this accident and received treatment at Kaiser Hospital. Defendant issued subpoenas demanding over ten years of medical, billing, insurance, and administrative records (from January 1, 2014 to present) for all plaintiffs. Prior to the production date, Plaintiff's counsel served objections and engaged in meet-and-confer discussions.

Nataliya now seeks to quash or limit deposition subpoenas for records issued by Defendant to third-party medical providers regarding her records. While co-plaintiffs Marat Valiullin and Ruslan Valiullin reached agreements limiting their records to nine years and four years prior to the accident respectively, Nataliya Muravskaya's objection to the ten-year scope remained unresolved.

Despite her offer to produce five years of records (later refined to three years prior to the accident), defense counsel rejected this limitation, citing her age and claimed injuries. Plaintiff asserts that these subpoenas should be quashed because they (a) demand an overbroad ten-year sweep of unrestricted medical history; (b) lack any limitation by body part, diagnosis, or condition; (c) constitute an improper wholesale production of confidential medical information unrelated to the specific injuries placed at issue in the litigation; (d) violate Plaintiff's constitutional right to privacy under Article I, Section 1 of the California Constitution; and (e) fail to meet the narrow tailoring requirements under California law.

In the alternative, Plaintiff requests an order limiting the scope of Nataliya's records to those (a) specifically relating to atypical chest pain, headaches, vertigo, and depression allegedly arising from the collision; (b) within a temporal scope of March 31, 2021 through March 31, 2026 (three years prior to and two years following the incident); and (c) excluding unrelated medical conditions, specialty departments, and administrative records not directly relevant to the claimed injuries.

Plaintiff asserts that the limitations reached for co-plaintiffs Marat Valiullin (records from March 31, 2017 to present) and Ruslan Valiullin (records from March 31, 2020 to present) were stipulated to and remain in effect.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court* (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.* (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

With respect to medical, billing records and other consumer records sought, there is no disagreement that Plaintiff's statutorily (Evid. Code, § 990 et seq.) and constitutionally (Cal. Const., art. I, § 1) recognized rights to maintain the privacy of her medical records are not waived in their entirety by the allegations she has made. (E.g., *Britt v. Superior Court* (1978) 20 Cal.3d 844, 862-864; Also, *In re Lifschutz* (1970) 2 Cal.3d 415; *Lantz v. Superior Court* (1994) 28 Cal.App.4th 1839, 1853-1857.)

However, to the extent that Nataliya has placed her physical condition in issue and claims that she has sustained injuries as a result of this alleged incident, she has given up the right to shield from the Defendant her medical records that reasonably relate to the claim she has asserted and for the disclosure of which there is a compelling need that outweighs the plaintiff's interest in preserving her privacy. (*Lantz v. Superior Court*, *supra*, at pp. 1854-1855, 1857.) Since there is a dispute concerning not only the extent of Plaintiff's injuries, but their causation, Plaintiff's contention that discovery must be limited to a temporal scope is a legitimate argument.

After reviewing the papers submitted by counsel and plaintiff, and after applying the applicable statutory and decisional authority, the Court finds good cause to deny Plaintiff's Motion to Quash in part and grant it in part.

Ruling

1. The timeliness argument raised by Defendant is **waived** by meeting and conferring.
2. Nataliya's Motion to Quash is **granted** in part. The production of records sought through subpoena shall be limited to the period of August 10, 2020 (when Nataliya was involved in a prior motor vehicle accident) to present. The records shall be further limited to any medical treatment for injuries arising out of the August 10, 2020 and March 31, 2024 accidents. The entities responding to the subpoena shall limit production of records to treatment for injuries arising out of these motor vehicle accidents, and any related consultations by any departments or specialists, and shall also include medical bills. No other documents shall be produced without further order of the Court.
3. As to Plaintiffs Marat Valiullin and Ruslan Valiullin, the Court **orders compliance** with the stipulation entered by the Parties to limit the production of medical records from March 31, 2017 to the present for Marat, and from March 31, 2020 through the present for Ruslan.
4. Plaintiff's counsel shall prepare and e-file a proposed order conforming to this ruling, attaching a copy of this tentative ruling thereto no later than five court days from the date of this order.
5. Defendant's counsel shall re-issue subpoenas consistent with this order and shall withdraw those inconsistent with this order.
6. Each party shall pay their own attorney's fees and costs for prosecuting and/or defending against this motion.

21. 9:01 AM CASE NUMBER: MSC21-01215
CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH
***HEARING ON MOTION FOR DISCOVERY (CONTINUED FROM 3/18/26 *ON THE RESERVED ISSUES ONLY*) ABATE, OR ALTERNATIVELY, TO COMPEL JOINDER AND CONTINUE TRIAL**
FILED BY:
TENTATIVE RULING:
Counsel are ordered to appear to discuss the status of outstanding discovery referred to the Discovery Referee and to provide a status report on reserved issues.